

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT NAME
HON. YOLANDA V. TORRES

Date: September 14, 2026

These are the Court's tentative rulings. They may become orders if the parties do not appear at the hearing. The Court might also make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 442, fn. 1)

If all counsel submit on the tentative ruling and do not desire oral argument please advise the courtroom clerk or courtroom attendant by calling (657) 622-5215. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal.R. Ct. 3.132.

Court reporters: Official court reporters are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth in the Privately Retained Court Reporter Policy on the court's website at www.occourts.org.

#	Case Name	Tentative
1	First American Title Insurance Company vs. Gomez 2025-01460028 Demurrer to Cross Complaint CMC	The Demurrer to Cross-Complaint by Cross-Defendant JPMorgan Chase Bank, N.A. is SUSTAINED with leave to amend. Movant demurs to the fifth and sixth causes of action for equitable indemnity and contribution. As of 9/8/26, no opposition has been filed. Movant contends Cross-Complainant "fails to allege any facts whatsoever demonstrating that Chase committed any wrongdoing, owed any duty to Gomez, or engaged in conduct causing Gomez's potential liability in the underlying action filed by First American Title Insurance Company." The only factual allegation against Movant is that it originated and funded a refinance loan in 2003. (§§ 11, 15.) In the fifth claim, the Cross-Complaint merely alleges, "If Cross-Complainant is found liable in the underlying action, such liability was caused in whole or in part by Cross-Defendants' acts or omissions." (§ 44.) In the sixth claim, Cross-Complainant alleges, "Cross-Defendants share responsibility for the damages alleged in the underlying action." (§ 48.)

		The Cross-Complaint fails to allege any factual basis for Movant's liability for equitable indemnity and contribution. Therefore, the demurrer is sustained with leave to amend. Cross-Complainant shall file an amended Cross-Complaint within fifteen (15) days of service of notice of this order.
2	Forbes vs. Forbes 2026-01549362 Demurrer to 1st Amended Complaint Motion to strike Portions of Complaint CMC OSC for Failure to Appear at CMC	Defendants Jon Forbes and Sherry Forbes' Demurrer and Motion to Strike Portions of the First Amended Complaint, the CMC and the OSC for failure to appear are CONTINUED to November 30, 2026, at 1:45 p.m. The parties/counsel failed to meet and confer. Defendants are required to meet and confer "in person, by telephone, or by video conference" at least five days before the date the demurrer and motion to strike are due. (Code Civ. Proc., §§ 430.41, 435.5.) Here, Defendants' responsive pleading was due by 5/13/26, i.e. 30 days after personal service of the FAC. (See Code Civ. Proc., §§ 430.40, subd. (a), 435, subd. (b)(1); ROA 34, 36.) Therefore, the deadline to meet and confer was 5/8/26. Defendants did not attempt to meet and confer until 5/10/26, two days after the deadline. When Plaintiff responded on 5/11/26, they ignored her email and filed the motions about 2.5 hours later. Defendants' untimely meet and confer efforts were inadequate and lacked good faith. The parties/counsel are ORDERED to meet and confer in person, by telephone, or by video conference regarding the issues raised in the demurrer and motion to strike. The parties shall discuss whether an amended complaint would resolve some or all of the issues raised in the demurrer and motion to strike. If so, the parties should submit a stipulation to file an amended complaint. No later than five court days before the continued hearing date, Defendants are ORDERED to file a supplemental declaration describing compliance with this order, including whether any issues were settled by the code compliant meet and confer efforts. Failure to comply with this order may result in sanctions against the non-compliant party and/or their counsel pursuant to Code of Civil Procedure section 177.5. Defendants shall give notice.
3	Trabuco Highlands Community Association vs. Loeffler 2022-01297235	Motion to Strike Defendant Jennifer Loeffler's Motion to Strike the Second Cause of Action from the Second Amended Complaint is GRANTED.

Demurrer to Amended Complaint Motion to Strike Portions of Complaint	Plaintiff concedes it exceeded the Court's grant of authority to amend the complaint in its ruling granting judgment on the pleadings. The Second Cause of Action is ORDERED stricken. Demurrer Defendant Steven Rader's Demurrer to the Second Amended Complaint (SAC) is OVERRULED in part and SUSTAINED in part with leave to amend. Plaintiff has sufficiently alleged a claim for fraudulent conveyance against Rader. "Shareholders of a corporation are not normally liable for its torts, but personal liability may attach to them through application of the 'alter ego' doctrine [citation], or when the shareholder specifically directed or authorized the wrongful acts." (<i>Wyatt v. Union Mortgage Co.</i> (1979) 24 Cal.3d 773, 785.) The SAC sufficiently alleges Rader personally participated in the wrongful act. (SAC, ¶ 49.) Additionally, there are no allegations or judicially noticed facts which support a finding a prefiling order was required under Civil Code section 1714.10(a). The SAC alleges Rader advised Loeffler to execute the transfer but does not allege Rader was acting as Loeffler's attorney. (SAC, ¶ 49.) Rader has not presented any allegation or judicially noticed facts which support the claim he ever represented Loeffler. Thus, Section 1714.10(a) does not apply to these claims at the pleading stage. Accordingly, the demurrer is overruled as to the 1st cause of action. Plaintiff has failed to allege a claim for declaratory relief against Rader. "In California, two conditions must be met before the alter ego doctrine will be invoked. First, there must be such a unity of interest and ownership between the corporation and its equitable owner that the separate personalities of the corporation and the shareholder do not in reality exist. Second, there must be an inequitable result if the acts in question are treated as those of the corporation alone." (<i>Sonora Diamond Corp. v. Superior Court</i> (2000) 83 Cal.App.4th 523, 538.) Plaintiff has not sufficiently alleged the second condition of an inequitable result to invoke the alter ego doctrine to pierce Rhino's corporate veil and hold Rader personally
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		liable. Additionally, Plaintiff has not alleged any controversy between it and Rader. The SAC does not allege Rader had any interest in the conveyance. Accordingly, the demurrer is sustained as to the 3rd cause of action. The Court finds the SAC is capable of amendment and, thus, grants leave to amend. (See <i>Scott v. City of Indian Wells</i> (1972) 6 Cal.3d 541, 549.)
4	Sanchez vs. Ford Motor Company 2024-01402402 Motion to Strike or Tax Costs	Defendant Ford Motor Company's (Ford) Motion to Tax Costs is GRANTED in part for a total amount taxed of \$363.00. Deposition costs are recoverable under Code of Civil Procedure section 1033.5, subdivision (a)(3)(A). Ford moves to tax \$3,813.88 for the cost associated with the deposition of Ford's person most knowledgeable on the ground it was unnecessary and unreasonable. Ford contends Plaintiff chose a significantly more expensive vendor and asked unnecessary questions, including about the witnesses' qualifications when he had been deposed hundreds of times, including by Plaintiff's firm. Ford does not contend the deposition itself was not reasonably necessary but disputes Plaintiff's counsel's choice of vendor and method of conducting the deposition. The Court DENIES the request to tax Item No. 4(e) in the amount of \$3,813.88. Ford also moves to tax a \$325.00 cancellation fee for an October 17 deposition. Ford contends it notified Plaintiff on October 13 as soon as it learned the witness became unavailable and provided an alternative date. (Abramova Decl., ¶ 6, Ex. A.) Ford contends no reasonable vendor charges a cancellation fee under these circumstances. Plaintiff contends it was issued a \$325.00 charge for the cancelled deposition. (Zakharian Decl., ¶ 23.) While Plaintiff further contends it "incurred" that charge and "was responsible" (Zakharian Decl., ¶¶ 24, 25) for that charge, Plaintiff does not demonstrate she actually paid for that charge. The Court GRANTS the request to tax Item No. 4(e) in the amount of \$325.00. Item 8b(5): Witness Fees - \$500.00

		Ford moves to tax \$500 in witness fees for a cancelled vehicle inspection on the ground Plaintiff provides no explanation of how the flat fee was calculated, what it represents, or how it was “reasonably necessary” to the litigation. Plaintiff contends the cancellation was due to Ford’s expert failing to appear and Plaintiff making herself and her expert available for a rescheduled inspection. (Zakharian Decl., ¶ 30.) Plaintiff demonstrates the \$500 cancellation charge was paid in full and was an actual litigation expense arising from a scheduled expert inspection. (Zakharian Decl., ¶ 29.) The Court DENIES the request to tax Item No. 8b(5) in the amount of \$500.00.
5	Madani vs. 2900 & 2910 E. Miraloma Ave. LLC. 2025-01482955 Motion for Leave to File Amended Cross-Complaint	Defendant/cross-complainant 2900 & 2910 E. Miraloma Avenue LLC’s (Miraloma) Motion for Leave to File an Amended Cross-Complaint is GRANTED. “A party against whom a cause of action has been asserted in a complaint or cross-complaint may file a cross-complaint setting forth . . . [a]ny cause of action he has against a person alleged to be liable thereon, whether or not such person is already a party to the action, if the cause of action asserted in his cross-complaint (1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him or (2) asserts a claim, right, or interest in the property or controversy which is the subject of the cause brought against him.” (Code Civ. Proc., § 428.10.) “[D]efendants may cross-complain against any person from whom they seek equitable indemnity. Defendants need only allege that the harm for which they are being sued is attributable, at least in part, to the cross-defendant.” (Weil & Brown, Cal. Prac. Guide: Civ. Pro. Before Trial (The Rutter Group 2025) Pleadings § 6:529, citations omitted.) “Cross-complaints for comparative equitable indemnity would appear virtually always transactionally related to the main action.” (<i>Time for Living, Inc. v. Guy Hatfield Homes/All American Development Co.</i> (1991) 230 Cal.App.3d 30, 38.) Leave to file a cross complaint “may be granted in the interest of justice at any time during the course of the action.” (Code Civ. Proc., § 428.50, subd. (c).) Analysis Miraloma seeks leave to file a cross-complaint against Towman Towing, Inc. (Towman).

	Miraloma's proposed amended cross-complaint brings causes of action for express indemnity, total equitable indemnity, partial equitable indemnity, contribution and repayment, and declaratory relief. (Ex. 2 (Proposed (Prop.) FACC.) Miraloma alleges it entered into a lease with Towman prior to the date of Plaintiff's alleged injuries with respect to the premises at issue. (Proposed (Prop.) FACC ¶ 7.) Miraloma alleges the agreement provides Towman will defend, indemnify and hold harmless Miraloma from suits such as the instant one. (Prop. FACC ¶ 7.) Miraloma further alleges Towman has been placed on notice of claim but has refused to indemnify and defend Miraloma. (Prop. FACC ¶ 7.) Miraloma's proposed amended cross-complaint arises out of the same transactions or occurrences as those alleged in Plaintiff's complaint as Miraloma contends the agreement it had with Towman provides Towman will defend, indemnify and hold harmless Miraloma from suits such as Plaintiff's. Plaintiff contends Miraloma has not demonstrated amendment is warranted in the interest of justice under Code of Civil Procedure section 428.50, subdivision (c) as the proposed amendment is based on a lease Miraloma had before Plaintiff's injury and Miraloma has not explained why Towman was not pursued earlier. Plaintiff also contends Miraloma has not stated when tender was made to Towman and when any refusal occurred. Finally, Plaintiff contends that granting leave would expand and delay the action. Miraloma filed its original cross-complaint on 7/3/25. Miraloma contends on 4/26/26, it conducted the deposition of Angela Sparks. The deposition questions centered on whether the tenant or the landlord is responsible for inspecting and repairing areas between the ceiling and roof, particularly following water damage that affected plywood. Sparks stated tenant responsibilities include notifying management of issues, while the ultimate responsibility depends on the lease agreement's terms. Sparks testified the lease limited Miraloma's responsibility to areas such as the roof and the foundation. Based on Sparks' testimony, a determination was made that Towman should be joined. The proposed amended cross-complaint sufficiently alleges for purposes of this motion that Towman has been placed on notice of claim but has refused to indemnify and defend Miraloma. (Prop. FACC ¶ 7.) On reply, Miraloma
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		also demonstrated that on 4/21/26, it made a tender of the defense to Towman. (Sargenti Decl., ¶ 3, Ex. 1.) Finally, as the causes of action for indemnity and contribution focus primarily on responsibility for Plaintiff's alleged damages, the proposed amended cross-complaint would not greatly expand the facts and issues regarding the underlying incident. Miraloma is ORDERED to file the First Amended Cross-complaint within five days.
6	Martinez vs. Jimenez 2023-01365732 Motion to be Relieved as Counsel	The motion of attorney Yuri Voronin of Wade Litigation, APC to withdraw as attorney of record for defendant Joseph Jimenez is GRANTED. (Code Civ. Proc. § 284, CRC 3.1362.) Attorney will be relieved as counsel of record for client effective upon filing of a proof of service of the signed order on client. Moving attorney is to give notice.
7	Perez vs. West H&A LLC 2025-01532225 Motion to Quash Service of Summons CMC OSC re Failure to Comply with CRC 3.110(b) OSC re Failure to Appear	Defendants' Motion to Quash Service of Summons and Complaint is GRANTED. Defendant Nationstar Mortgage LLC (erroneously sued as Nationstar Mortgage, LLC) ("Nationstar") specially appears and moves under Code Civil Procedure section 418.10. Nationstar challenges the court's personal jurisdiction over it on the ground of improper service. Code of Civil Procedure, section 418.10, subdivision (a)(1), provides that a defendant may serve and file a notice of motion "[t]o quash service of summons on the ground of lack of jurisdiction of the court over him or her." "In the absence of a voluntary submission to the authority of the court, compliance with the statutes governing service of process is essential to establish that court's personal jurisdiction over a defendant. When a defendant challenges the court's personal jurisdiction on the ground of improper service of process the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service." (<i>Summers v. McClanahan</i> (2006) 140 Cal.App.4th 403, 413; see also <i>CenterPoint Energy, Inc. v. Superior Court</i> (2007) 157 Cal.App.4th 1101, 1118.) This may be shown by affidavits, declarations, or other competent evidence. (<i>CenterPoint Energy, Inc., supra</i>, 157 Cal.App.4th at 1118.) A plaintiff may serve an LLC either by the methods specified in the California Corporations Code or through methods permitted to serve corporations. (See Corps. Code § 17701.16, subd. (a) ["In addition to Chapter 4

		(commencing with Section 413.10) of Title 5 of Part 2 of the Code of Civil Procedure, process may be served upon limited liability companies ... as provided in this section.”].) Accordingly, an LLC may be personally served by delivering the summons and complaint to one of an enumerated list of individuals, including the designated agent for service of process. (Code Civ. Proc., § 416.10; Corps. Code, § 17701.16, subd. (b).) As an initial matter, Plaintiffs failed to use the mandatory Judicial Council Proof of Service of Summons (form POS-010). (See Code Civ. Proc., § 417.10, subd. (f).) While a computer-generated or typewritten form may be substituted for form POS-010, it must meet certain requirements. (Cal. Rules of Court, rule 2.150(a). Plaintiffs’ typewritten proof of service does not meet those requirements. (ROA 14.) The proof of service filed with the court indicates a copy of a document titled “Unlimited Civil Case Summons, Case # 30-2025-01532225 to Nationstar Mortgage LLC/dba Mr. Cooper, at 675 Anton Blvd, Costa Mesa, CA 92626” was personally served on Nationstar on 12/11/25. (ROA 14.) However, Nationstar’s evidence establishes its registered agent for service of process on that date was CSC - Lawyers Incorporating Service (“CSC”), located at 2710 Gateway Oaks Drive, Sacramento, CA 95833. (Ex. 1.) Nationstar’s evidence lists several CSC “agent authorized employees.” However, none have the surname “Cooper”. Plaintiffs have not filed an opposition. Therefore, they have not met their burden of proving the facts requisite to an effective service. The motion is granted.
9	Huynh vs. Williams 2024-01436961 Motion for Reconsideration Motion for Sanctions pursuant to CCP 128.7 CMC	Motion No. 1: The Motion for Reconsideration by Defendant Gerard Richard Williams III is DENIED. Defendant seeks reconsideration of the Court’s 7/8/25 order denying Defendant’s Motion to Compel the Clerk to Enter a Dismissal Order. Code of Civil Procedure section 1008(a) states, “(a) When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or

	granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” Defendant initially filed this motion on 7/10/25 then re-filed the motion on 10/16/25 after the case was removed and then remanded from federal court. Defendant should have requested a new hearing date for the timely-filed 7/10/25 motion, rather than filing a new, untimely motion for reconsideration. (Code Civ. Proc. 1008(a) [ten-day deadline to file motion for reconsideration].) However, even if the Court considers the merits of the untimely motion, there is no basis for relief. The motion was initially set for 6/1/26 but the parties stipulated to continue the hearing on the motion on 5/28/26. The Court has reviewed the opposition filed on 8/31/26 and the reply filed on 9/4/26. As described in greater detail in the 7/8/25 order, Plaintiff’s prior counsel had filed a request for dismissal with prejudice on 12/2/24. The Court denied Defendant’s request to enter the requested dismissal because Plaintiff asked to withdraw the request for dismissal on the basis that it was filed in error by Plaintiff’s counsel. Moreover, even if the dismissal had been entered, Plaintiff could have filed a motion to set aside the dismissal based on excusable neglect. Defendant points to “new or different facts” consisting of email exchanges from November – December 2024 between counsel in which Plaintiff’s counsel stated they intended to dismiss the case. Defendant asserts that Plaintiff’s withdrawal of the dismissal was due to a “change of heart” after consulting with new counsel, rather than a true mistake. Defendant states it did not have time to compile this evidence in response to Plaintiff raising the argument regarding mistake in opposition to the underlying motion. Defendant also asserts Plaintiff raised new arguments during the hearing as to whether Plaintiff’s counsel failed to follow the proper steps to obtain dismissal.
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	The Court declines to reconsider the 7/8/25 order. Defendant cites evidence consisting of emails between counsel, which could have been presented prior to the hearing on the underlying motion. (See <i>Baldwin v. Home Sav. of America</i> (1997) 59 Cal.App.4th 1192, 1198 [party seeking reconsideration must provide not only new evidence but also explanation for failure to produce evidence at earlier time].) Moreover, even assuming the Court considers the emails reflecting Plaintiff's prior counsel stating they intended to dismiss the action, Defendant fails to cite legal authority holding this evidence requires the Court to enter dismissal. Defendant has not shown reconsideration is required by new facts, evidence, or law. Motion No. 2: Plaintiff Hung Huynh's Motion for Sanctions against Defendant and his Counsel Under Code of Civil Procedure section 128.7 is DENIED. Plaintiff moves for sanctions of \$15,291.50 based on Defendant's allegedly frivolous and harassing litigation tactics related to the motion for reconsideration of the dismissal issue addressed above. The motion was filed on 3/20/26 and Movant's counsel declares they served the motion on Defendant on 2/18/26 in compliance with the safe harbor notice requirement of section 128.7. Legal Standard: Code of Civil Procedure section 128.7 states in part: "(b) By presenting to the court, whether by signing, filing, submitting, or later advocating, a pleading, petition, written notice of motion, or other similar paper, an attorney or unrepresented party is certifying that to the best of the person's knowledge, information, and belief, formed after an inquiry reasonable under the circumstances, all of the following conditions are met: (1) It is not being presented primarily for an improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation. (2) The claims, defenses, and other legal contentions therein are warranted by existing law or by a nonfrivolous
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	argument for the extension, modification, or reversal of existing law or the establishment of new law. (3) The allegations and other factual contentions have evidentiary support or, if specifically so identified, are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery. (4) The denials of factual contentions are warranted on the evidence or, if specifically so identified, are reasonably based on a lack of information or belief. (c) If, after notice and a reasonable opportunity to respond, the court determines that subdivision (b) has been violated, the court may, subject to the conditions stated below, impose an appropriate sanction upon the attorneys, law firms, or parties that have violated subdivision (b) or are responsible for the violation. In determining what sanctions, if any, should be ordered, the court shall consider whether a party seeking sanctions has exercised due diligence. (d)A sanction imposed for violation of subdivision (b) shall be limited to what is sufficient to deter repetition of this conduct or comparable conduct by others similarly situated. Subject to the limitations in paragraphs (1) and (2), the sanction may consist of, or include, directives of a nonmonetary nature, an order to pay a penalty into court, or, if imposed on motion and warranted for effective deterrence, an order directing payment to the movant of some or all of the reasonable attorney's fees and other expenses incurred as a direct result of the violation." "A court has broad discretion to impose sanctions if the moving party satisfies the elements of the sanctions statute. Like its federal counterpart, however, rule 11 of the Federal Rules of Civil Procedure (28 U.S.C.), section 128.7 should be utilized only in the rare and exceptional case where the action is clearly frivolous, legally unreasonable or without legal foundation, or brought for an improper purpose. Because our adversary system requires that attorneys and litigants be provided substantial breathing room to develop and assert factual and legal arguments, section 128.7 sanctions should not be routinely or easily awarded even for a claim that is arguably frivolous, and instead should be made with restraint. Indeed, even if a plaintiff could not successfully defend against either demurrer or summary judgment, that alone is insufficient to support the sanction of
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	dismissal.” (<i>Kumar v. Ramsey</i> (2021) 71 Cal.App.5th 1110, 1120–1121.) Under section 128.7, “A legally frivolous claim is one that is objectively unreasonable: A claim is factually frivolous if it is not well grounded in fact and is legally frivolous if it is not warranted by existing law or a good faith argument for the extension, modification, or reversal of existing law. In either case, to obtain sanctions, the moving party must show the party's conduct in asserting the claim was objectively unreasonable. A claim is objectively unreasonable if any reasonable attorney would agree that it is totally and completely without merit.” (<i>Saurman v. Peter's Landing Property Owner, LLC</i> (2024) 103 Cal.App.5th 1148, 1172.) Application: Judge Strickroth took the original motion for reconsideration off calendar when the case was removed to federal court. After remand, Defendant should have filed an application for the Court to set a new hearing date on the timely-filed motion for reconsideration. Instead, Defendant filed a new, untimely motion for reconsideration under Code of Civil Procedure section 1008(a), which is mandatory and jurisdictional: “When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” However, Defendant asserts that the second motion was identical to the first motion, so filing a renewed motion had the same effect as requesting a new hearing date. The motion for reconsideration raised arguments which lacked merit. The motion sought relief based on purported new facts and evidence which was already available to movant at the time the original motion was filed, not the “new” facts or evidence required under section 1008. However, Defendant asserts, “[T]he Renewed Motion for Reconsideration (which is substantially the same as
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		Williams's Original Motion for Reconsideration) was made with a sound basis and in good faith. It is based on new evidence undermining Huynh's claim of a miscommunication between him and his lawyers. And, even though such evidence, emails between the parties' counsel, existed at the time of the briefing on the Motion to Enter Dismissal, the circumstance warranting their consideration after the Court's July 8, 2025 Order was that because Huynh had essentially sprung on the parties and the Court at the last minute his belated argument of "miscommunication," it left Williams and his then-counsel little opportunity to fully rebut it with all the possible testimonial and documentary evidence." (Opp. at p. 9.) Although the motion was untimely and lacked merit, the Court cannot say it was completely frivolous or filed for purposes of delay or harassment under section 128.7. Defendant's counsel believed that filing a renewed nearly-identical motion was appropriate since the Court took the original, timely motion off calendar. Defendant raises a colorable argument that the "new evidence" was not presented at the initial hearing because Plaintiff raised new arguments after the opposition was filed. Therefore, the motion is denied.
10	All Inclusive Insurance Services, LLC vs. EOS Organization, LLC 2023-01310746 Motion for Terminating Sanctions	Plaintiffs All Inclusive Insurance Services, LLC and Isidro Miramontes' motion for terminating sanctions or, in the alternative, issue and evidentiary sanctions against Defendant Aaron J. Green is DENIED without prejudice. "[T]erminating sanctions are to be used sparingly, only when the trial court concludes that lesser sanctions would not bring about the compliance of the offending party." (<i>R.S. Creative, Inc. v. Creative Cotton, Ltd.</i> (1999) 75 Cal.App.4th 486, 496.) "[W]here a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction." (<i>Doppes v. Bentley Motors, Inc.</i> (2009) 174 Cal.App.4th 967, 992.) Plaintiffs have shown Defendant violated the Court's 4-29-26 Order compelling Defendant to (1) serve responses to Plaintiffs' Motion to Compel Responses to Special Interrogatories, within 21-days; (2) serve responses to Plaintiffs' Motion to Compel Responses to Request for Production of Documents, within 21-days; (3) to appear for his deposition within 21-days; and (4) pay monetary sanctions of \$6,518 within 30 days. (Harrison Decl., ¶¶ 19-24, Ex. 1.) Notice of the ruling was served by the court clerk by mail on Defendant. (ROA 347.) However, to date,

		Plaintiffs have not received any responses in compliance with the 4-29-26 Order. The moving party must not only show that there was violation of the court's order, but that such violation was willful. (Doppes, supra, 174 Cal.App.4th at 992.) Plaintiffs have not shown that the violation of the Court's Order was willful. Further, there has been no incremental approach to sanctions and lesser sanctions of issue, evidentiary, and/or monetary sanctions are appropriate prior to imposition of terminating sanctions. Accordingly, Plaintiffs' request for terminating sanctions is DENIED. As to issue and evidentiary sanctions, pursuant to California Rules of Court, Rule 3.1345(a)(7), a separate statement is required for a motion for issue or evidentiary sanctions. Plaintiffs have not filed a separate statement in support of their request for issue and evidentiary sanctions and therefore failed to comply with Rule 3.1345(a)(7). Accordingly, Plaintiffs' request for issue and evidentiary sanctions is DENIED. Defendant is ORDERED to comply with the Court's 4-29-26 Order within 20-days' notice of this ruling. The Court warns Defendant that failure to comply with the Court's Order will result in more severe sanctions, which may include terminating sanctions. Plaintiffs to give notice.
12	Ramirez vs. Woodlake Village Community Association 2025-01456495 Motion for Summary Judgment and or Adjudication Review Hearings	Defendant Farmers Insurance Exchange motion for summary judgment, or in the alternative for summary adjudication, in its favor and against Plaintiff Adriana Ramirez, on all causes of action alleged in Plaintiff's First Amended Complaint is CONTINUED to November 30, 2026, at 1:45 p.m. Plaintiff opposes the Motion but, in the alternative, seeks a continuance to obtain additional discovery. Code of Civil Procedure section 437c, subdivision (h) provides: "If it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just. The application to continue the motion to obtain necessary discovery may also be made by ex parte motion at any time on or before the date the opposition response to the motion is due."

		<i>Braganza v. Albertson's LLC</i> (2021) 67 Cal.App.5th 144, 152–53, states: "Given the high stakes involved in motions for summary judgment and summary adjudication, continuances under section 437c, subdivision (h), are "virtually mandated ` "upon a good faith showing by affidavit that a continuance is needed to obtain facts essential to justify opposition to the motion." ' " (Bahl, supra, 89 Cal.App.4th at pp. 395, 398-399, 107 Cal.Rptr.2d 270; Johnson v. Alameda County Medical Center (2012) 205 Cal.App.4th 521, 532, 140 Cal.Rptr.3d 281 (Johnson) [" `When a party makes a good faith showing by affidavit demonstrating that a continuance is necessary to obtain essential facts to oppose a motion for summary judgment, the trial court must grant the continuance request.' "].) Plaintiff has submitted the declaration of her attorney, Dominique N. Westmoreland, in support of her request for a continuance. Plaintiff asks that the court continue the hearing to allow Plaintiff to depose Michelle Moore. Plaintiff states that during his deposition, Farmers' adjuster, Jesus Medina, testified that Moore had final authority over the additional living expense period and that he would submit the period to her for approval. (Westmoreland Decl., ¶ 12.) Plaintiff requires Moore's deposition to determine the facts she considered, the reason she rejected further benefits, her authority within Farmers, and whether she authorized or ratified the cutoff despite knowledge that reconstruction remained incomplete. (Westmoreland Decl., ¶ 14.) Plaintiff also requires a person-most-qualified ("PMQ") deposition concerning Farmers' additional living expense policies, repair-period determinations, supervisory approval requirements, training, and corporate ratification. (Westmoreland Decl., ¶ 15.) Plaintiff has sufficiently shown that the facts to be obtained through further discovery and depositions of Moore and Farmer's PMQ are essential to opposing the Motion and there is reason to believe such facts may exist. Accordingly, the hearing on the Motion is CONTINUED. Moving party to give notice.